

HOUSE No. 5108

The Commonwealth of Massachusetts

PRESENTED BY:

David T. Vieira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the acquisition and disposition of certain land in the town of Falmouth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>2/11/2026</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>2/12/2026</i>
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>2/26/2026</i>

HOUSE No. 5108

By Representative Vieira of Falmouth, a petition (accompanied by bill, House, No. 5108) of David T. Vieira (by vote of the town) relative to the acquisition and disposition of certain land in the town of Falmouth. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the acquisition and disposition of certain land in the town of Falmouth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The town of Falmouth, acting by and through its Select Board, is hereby
2 authorized to acquire by gift the following land in the Town of Falmouth, 41 Theatre Drive, now
3 or formerly owned by New Cape Cod Country Club Inc., consisting of approximately 45.06
4 acres as shown as Lot 163 on Land Court plan 12349-4 registered with the Barnstable County
5 District of the Land Court, 42 Theatre Drive now or formerly owned by New Cape Cod Country
6 Club Inc., consisting of approximately 0.84 acres as shown as Lot 14 on Land Court plan
7 12349L registered with the Barnstable County District of the Land Court, 48 Theatre Drive now
8 or formerly owned by New Cape Cod Country Club Inc., consisting of approximately 48.65
9 acres as shown as Lot 39 on Land Court plan 12349R registered with the Barnstable County
10 District of the Land Court, 59 Theatre Drive now or formerly owned by New Cape Cod Country
11 Club Inc., consisting of approximately 3.39 acres as shown as Lot 15 on Land Court plan
12 12349L registered with the Barnstable County District of the Land Court, and 0 Boxberry Hill
13 Road now or formerly owned by New Cape Cod Country Club Inc., consisting of approximately

14 41.49 acres, all five parcels, together, comprising approximately 139.43 acres as shown as Lot 35
15 on Land Court plan 12349R registered with the Barnstable County District of the Land Court.

16 SECTION 2. The town of Falmouth, acting by and through its Select Board, is hereby
17 authorized to dispose of all or portions of said parcels of land to one or more companies to be
18 used for the construction, operation and maintenance of a solar energy generating facility, energy
19 storage, energy transmission and related infrastructure by lease or otherwise.

20 SECTION 3. The acquisition and disposition of said land shall be exempt from the
21 requirements of chapter 30B of the General Laws.

22 SECTION 4. This act shall take effect upon its passage.